

The Merchant Shipping (Pilot Ladder) Rules, 1967

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The Merchant Shipping (Pilot Ladder) Rules, 1967

UNION OF INDIA

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The Merchant Shipping (Pilot Ladder) Rules, 1967

Rule THE-MERCHANT-SHIPING-PILOT-LADDER-RULES-1967 of 1967

Published on 21 October 1967

Commenced on 21 October 1967

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The Merchant Shipping (Pilot Ladder) Rules, 1967

Published vide Notification Gazette of India, 1967, Part 2, Section 3(i), page 1770.

1788.

G.S.R. 1650, dated 21st October, 1967. - In exercise of the powers conferred by subsection (1), read with clause (0) of sub-section (2) of, section 288 of the Merchant Shipping Act, 1958 (44 of 1958) and in supersession of the Indian Merchant Shipping (Pilot Ladder) Rules, 1953, the Central Government hereby makes the following rules, the same having been previously published as required by the said sub-section (1) of section 288, namely :-

1.

Short title, application and commencement.

(1)

These rules may be called the Merchant Shipping (Pilot Ladder) Rules, 1967.

(2)

They shall apply to-

(a)

Indian Ships of over 200 tons net tonnage,

(b)

all Indian passenger ships engaged on international voyages in the course of which pilots are likely to be employed, and

(c)

other ships which are required to have on board a pilot harbour-master or assistant harbour-master under section 31 of the Indian Ports Act, 1908 (15 of 1908) while they are in any port in India:

Provided that these rules shall not apply to a ship, other than an Indian ship, by reason of her being within a port in India if she would not have been in such port but for stress of weather or any other circumstances that neither the master nor the owner nor the charter (if any) of the ship could have prevented or forestalled.

(3)

They shall come into force at once.

2.

Provision of Pilot Ladder.

(1)

Every ship to which these rules apply shall be provided with a pilot ladder which shall comply with the following requirements, namely:-

(a)

a single length of ladder shall be provided capable of reaching the water from the point of access to the ship when the ship is in an unloaded condition and in normal conditions of trim with no list

(b)

the pilot ladder shall be secured in a position so that each step rests firmly against the ship's side;

Provided that the Central Government may exempt ships with rubbing bands or ships which by virtue of their construction cannot fully comply with the provisions of this clause, to the requirements of this clause subject, however, to the condition that the provisions of this clause shall be complied with as nearly as circumstances permit;

(c)

the pilot ladder shall be in a position clear of any possible discharges from the ship and so secured that the pilot can gain safe and convenient access to the ship after climbing not less than 1.5 metres and not more than 9 metres. Whenever the distance from sea level to the point of access to the ship exceeds 9 metres, access from the pilot ladder to the ship shall be by means of an accommodation ladder or other suitably safe or equally convenient means;

(d)

the treads of the pilot ladder shall be of hard wood and not less than 48 centimetres long, 11.4 centimetres wide 2.5 centimetres in depth;

(e)

the steps shall be joined in such a manner that the ladder will be of adequate strength;

(f)

the steps shall be maintained in a horizontal position and shall be evenly spaced and not less than 30.5 centimetres or more than 38 centimetres apart;

(g)

spreaders of sufficient a length at such intervals so as to prevent the ladder from twisting;

provided that the provisions of this clause need not be complied with if the owner or master is satisfied that the ladder will not twist when in use without spreaders;

(h)

the side ropes of the pilot ladder shall consist of two manila ropes 5.71 centimetres on each side;

provided that the Central Government may accept the use of ropes of such other material as may be approved by them.

(2)

There shall also be available on board-

(a)

two man ropes of adequate strength and properly secured and of not less than 6.25 centimetres in circumference each

and a safety line, ready for use whenever required;

(b)

handholds to enable the pilot to pass safely and conveniently from the head of the ladder into the ship or on to the ships' deck;

(c)

a light capable of shining alongside the ship so as to illuminate the ladder effectively at night and adequate lighting arrangements on the deck at the position where the pilot would board the ship.

3.

Maintenance and use of pilot ladder and other appliances.

(1)

The pilot ladder and other appliances required to be carried on board under sub-rule (2) of rule 2 (hereinafter in this rule referred to as other appliances) shall be kept in good condition and shall be reserved for the use of officials and other persons while a ship is arriving at, or leaving a port and for the embarkation and disembarkation of pilots.

(2)

Pilot ladder and other appliances shall be used whenever a pilot, harbour-master or assistant harbour-master embarks or disembarks from a ship.

(3)

It shall be the duty of the master or other person in charge of a ship to ensure that no ladder other than a pilot ladder is used by a pilot for embarkation or disembarkation.

(4)

The rigging of the pilot ladder and other appliances and the embarkation and disembarkation of a pilot shall be supervised by the mate or other responsible officer on board of the ship.

4.

Penalty.

- Whoever commits a breach of any of the provisions of these rules shall be punishable with fine which may extend to one thousand rupees and, if the breach is continuing one, with further fine which may extend to fifty rupees for a every day after the first during which the breach continues.

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